

The Claremont City Council held a meeting on Wednesday, August 9, 2017, in the Council Chambers of City Hall.

The meeting was called to order by Mayor Lovett at 6:30 p.m.

1. PLEDGE OF ALLEGIANCE

2. ROLL CALL

Members of the Council present were:

Ward I Councilor Carolyn Towle
Ward II Councilor Scott Pope
At-Large Councilor Keith Raymond
Assistant Mayor Victor Bergeron
Mayor Charlene Lovett
At-Large Councilor Allen Damren
At-Large Councilor Bruce Temple
Ward III Councilor Nicholas Koloski
At-Large Councilor John Simonds

Also present:

Ryan McNutt, City Manager

3. AGENDA CHANGES

There were no changes to the agenda.

4. REPORT OF THE SECRETARY

Approval of the July 12th meeting minutes was postponed because they were incomplete.

5. MAYOR'S NOTES

1. Two people in the community have recently gained national recognition. Congratulations to Prescott Herzog, a 9th grader from SHS, who was selected to serve as the NH State Ambassador for Fuel Up to Play 60, the nation's largest health and wellness program. Also, congratulations to Mr. Wright, CEO of VRH, for his appointment to the Board of Trustees for the American Hospital Association.
2. As you may recall from our last Council meeting, recent legislation regarding the establishment of Keno in communities is a local decision. We had originally discussed putting this topic on tonight's agenda, but it has been moved to Aug 23rd. The reason being is that the City Manager invited Charles McIntyre, Executive Director of the NH Lottery, and he could not attend this meeting. He will be speaking at our next meeting. We may vote at that meeting to put it on the November ballot.

3. On August 24th at 6:30pm at the CSB Community Center there will be a public informational session on a number of USDA Housing Programs designed to financially assist low to medium income homeowners make improvements to their homes. This money can be used for lead remediation/abatement.
4. On August 26th, the School District will be hosting the Back-to-School Festival from 12-4pm in Barnes Park. One of the new additions this year will be free, on-site lead screening tests. This is designed to help parents meet the requirements outlined in the new lead screening policy which dictates that children are tested for lead prior to entering the Claremont School District. Tests will consist of a finger prick done by medical professionals from Valley Regional Hospital.

Assistant Mayor Bergeron read a letter of resignation from the Council. Mr. Bergeron has sold his Claremont home and is moving to Florida for health reasons. His resignation is effective August 31st. Mr. Bergeron went on to address what he called false information about this move that he said had been circulating in social media. He stated that this move is for health reasons, not to avoid high taxes or because he dislikes Claremont. He stated that Claremont has always been his home and he remains dedicated to it.

6. CITY MANAGER'S REPORT

Pleasant Street Blackout

Mr. McNutt said his office had been made aware of the lighting failure on Pleasant Street last week and that the situation had been corrected. The outage was due to a corroded circuit, which speaks to the age and condition of the lighting and infrastructure in the downtown. He said discussions are underway to address this situation as part of the downtown revitalization efforts.

Ribbon Cuttings

Some recent ribbon-cuttings included the Barse Bakery at 32 Pleasant and E & D Shoe at 35 Pleasant Street. Coming up soon will be the Uptown Bakery at 10 Glidden.

Ashley Ferry Boat Launch

The Ashley Ferry Boat Launch was closed temporarily (7/31 to 8/3) to remove the silt build-up on the ramp and to grade the parking area. This site is managed by the New Hampshire Fish and Game Department as one of 143 public boat launches across New Hampshire's 938 lakes and 12,000 miles of rivers with only a handful of staff doing the work.

Rail Trail Waiver

When Mr. McNutt started here in Claremont, there was a process that had already been started by Jane Taylor seeking a waiver or a better understanding of the Federal government's views on allowing off-road wheeled vehicles on rail trails. Twenty years ago, the Federal government funded the purchase of these rail trails by communities all across America. At that time, they allowed snowmobiles, but restricted motorized wheeled vehicles. In some cases, the restriction is appropriate, in others, not so much. Mr. McNutt stated that the City should have the ability to seek a waiver within the context of Claremont instead of being considered on a national scale. Each waiver should be reviewed within the unique context of each community.

Jane Taylor, the Town Manager of Haverhill, and Mr. McNutt sent a letter to our Federal delegation on June 1st, 2017. Mr. McNutt said he had received a phone call from NH Senator Jeanne Shaheen's office. (Senator Shaheen sits on the Senate Appropriations Committee.) She has introduced an amendment to a legislative report that would recommend that the Federal Highway Administration "use economic consideration when determining waivers for trails". As a result, Claremont and Haverhill will have another meeting with our Federal delegation and state staff in Concord on August 23rd to continue to discuss this issue. It appears that the federal manager of this program has received guidance from the US Congress to consider waiver requests within the community's contextual situation, thus increasing the possibility of individual waivers being granted. Whether this would be appropriate for Claremont would require a much broader public discussion.

Keno in Claremont

Mr. McNutt said he had spoken to Charles Macintyre, the Executive Director of the NH Lottery, who walked Mr. McNutt through the process of allowing Keno in Claremont. In short, City Council either votes to place the Keno decision on the November ballot or votes to exclude it. If Council votes to place it on the ballot, then a public hearing must be held between October 8th and October 24th. The public then votes on it at the November elections. Claremont could receive a minimum of \$150,000 annually – and probably more – if Keno is accepted by the voters. The proceeds go toward funding full-day kindergarten.

Senate Bill 38

Additional appropriation for highway block grant funds -provisions of the bill include specific language that allows municipalities to accept and expend these funds under the process provided in RSA 31-95b, regardless of whether that community has adopted that provision. Money from the state grant for a specific purpose is non-lapsing (i.e. we don't have to spend it all in one fiscal year; it will carry over to another fiscal year), but it may not go into the general fund balance. It has to be carved out into a separate account for traffic improvement projects. We are setting up for the Council to hold a public hearing in accordance with RSA 31-95b on Wednesday, August 23rd; also, to accept the \$277,379.33 (our proceeds from SB38).

Recently Completed Projects

The Monadnock Park track resurfacing project has been completed. This was an \$80,000 project - \$20,000 from the City; approximately \$11,000 from the school; and \$50,000 from an anonymous donor. Mr. McNutt thanked all who contributed financially to the project – the track looks really nice.

New rubber floors have been installed in the CSB Community Center fitness center. This comes under regular, normal maintenance of the building.

Also at the Community Center, the tiling around the swimming pool has been repaired. This, too, is considered normal, proactive maintenance. This demonstrates that the City is giving due diligence to facility maintenance and not deferring it.

Council Questions to the Manager Regarding His Report and/or Departmental Reports

Mr. Koloski asked for an update on the cruiser that was damaged (the SUV) and how that plays into the replacement of the vehicle or how that works in the lease schedule. Mr. Koloski also asked if the current SUV that is on the road is subject to the recall involving carbon monoxide. He said the fire department in Weathersfield measured the CO level in the cruiser at 16 ppm, which he said was “not good”. Mr. McNutt said he would get answers.

Mayor Lovett commended the Planning & Development Department for an extensive report, but asked that projects be described in more depth in the future instead of the “bite-sized” descriptions currently provided. She referred specifically to the Main/North Street Intersection Project. Under the Main Street project, the report states that easements are completed; FHA review; construction 2017-2018. She asked if it was realistic to think we would go to construction this year. Mr. McNutt acknowledged that it was unlikely, but there are often surprises as to what contractors can do. Mayor Lovett said the reason she was seeking more detail on this project is because this is a project that has been talked about for many years with numerous delays. She said it is the one question that is asked “all the time – ‘when is it going to happen’”? She would like to better understand the cause of all of the delays so she can convey them accurately when asked about them.

Mayor Lovett asked about the \$400,000 construction value for the month given in the P & D report. She asked how the figure was derived. Nancy Merrill, Director of the Planning and Development Department, said the permit application and fees are based in large part on the estimated cost of the project. The estimated cost is provided by the applicant.

Mr. McNutt said he had been asked by the Finance Committee to give the Council an update on the number of building permits. He said that number is given in the monthly report – 329 permits so far this (calendar) year and 34 permits pulled for the month of July.

On the DPW report, it said the Citizen Street bridge bank stabilization plan – Mayor Lovett asked if DPW had presented that project to the Council. She was unfamiliar with the project and asked for more information on it.

Mayor Lovett said the DPW report also mentions a water break on Bible Hill and asked what had happened. Mr. McNutt said he would have to get details about it. She said there has been a lot of concern over that area with breaks, culverts and wash-outs on the road – “it’s a mess”.

Mayor Lovett commended the DPW for continuing their operation under the “Get the Lead Out” program. She said if anyone has had the line leading to their house up to their property line replaced because it was a lead pipe, and they are a single-family home and they live in that home, and they are low- to moderate-income, they may want to come to the August 24th information session because they may be eligible for money to help. Mr. McNutt said, “They DEFINITELY want to come”. The loan program has a 1% interest rate.

7. APPOINTMENT TO BOARDS AND COMMITTEES

There were no appointments.

8. CITIZEN'S FORUM

Bernie Folta, Ward 3, asked why the City cannot provide financial reports for the previous month. It should be possible with the accrual accounting system. He said he would like to see the previous month and the year-to-date reports each month. He said he would also like to see the 6-month financial report in January when the new Council will be seated.

There were no other comments. Mayor Lovett closed the citizen's forum.

9. OLD BUSINESS

A. Real Estate, Map 120-156, 106 Broad Street

Ms. Merrill said this property is the church next to the fire station. The City owns the property. It was put out to bid in late spring. We have received a single bid, from the Lake Sunapee Baptist Church in Newport with a proposal for development. The Church is proposing a 2-phase renovation plan which would begin immediately upon transfer of the property. Phase one would be the facility main floor for the use as service ministry. Phase two would be the basement level, lower floor. The use of the property would be for an after-school teens-at-risk program, "Activate Kids Center" as well as church ministry and church services.

The bell and the weathervane were not part of the bid and are not part of the proposed sale. The City will maintain ownership of them. The only thing transferring is the real estate.

Prospective buyer, Pastor Sam Coberly, was present to describe his project and answer questions from the Council. He is proposing to use the property as an activate center. He has been running a s very successful after-school program in Newport for the past two years. That program provides homework assistance, food (pre-packaged, no kitchen involved), job skills development, addiction prevention and recovery. He would like to establish the same program in Claremont. The proximity to the library, high school and middle school is "perfect". Worship services would take place there as well.

This would be a second Activate Center – students will not be coming to Claremont from Newport.

The renovations to the main floor will not be as extensive to bring up to code as it will be for the downstairs, especially with regard to accessibility. The plan is to prepare the main floor so they can get the Activate Center functioning almost immediately and then look at what would be required for the bottom level.

Pastor Coberly said he is very confident that they have sufficient funding to address the (considerable) renovation costs. He said there are quite a few contractors who are members of the church and some business owners who “have a heart for the next generation”.

Pastor Coberly said they would “absolutely” maintain the historical character of the building – the church’s preference is to rehabilitate existing buildings. The damaged stained-glass windows will be repaired (there is a lady in the church who is certified in stained glass repair). The rear door (to the cemetery) will be used for emergency exit only.

Mr. Bergeron asked if the bell and weathervane should be removed from the church prior to the sale of the property. Ms. Merrill felt the City could make arrangements with the buyer to keep them safe until the City decides what to do with them.

The City has not done an assessment of the steeple’s structural integrity. Pastor Coberly said they have had two contractors look at the steeple and they “did not bring up any issues”. Mr. Pope said the bell and weathervane were redone in 1996 under then City Manager Bob Porter. He said his class helped to restore the weathervane and that it should be in good shape. He said it was an extensive project to get all of that done and that it may not be a simple task to “just remove the bell” (several layers of staging, cranes, etc.).

Lake Sunapee Baptist Church Incorporated is a registered New Hampshire non-profit organization.

Mr. Koloski said the goal is to put buildings back on the tax roll. If that is not happening in this case, he asked if there is a proposed PILOT. Pastor Coberly replied that if the building was currently providing revenue to the City, it would certainly be a concern. However, until two years ago the property was a church and then has sat vacant since. He said he felt the money his center will bring to the City will offset any tax revenue. He also said that it can be difficult for a business to locate right next door to a fire station with alarms going off unpredictably, but for a church, the proximity to the station “is perfect”.

Mr. Koloski expressed concern about the bell and weathervane, specifically their protection going forward, the event of a transfer to another owner, access to the bell and weathervane in the event that either one needed repairs or removal or if either of them are perceived by the property owner as causing damage to the building. Mayor Lovett and Ms. Merrill felt confident that these concerns could

be addressed in the sale document. It was agreed that the sales document be made available to the Council for review before it is finalized with the buyer.

The question of whether or not the City will need to carry insurance on the bell and weathervane will need to be answered.

B. Non-public session pursuant to RSA 91-A:3, II(d) – Real Estate

Motion: To enter non-public session pursuant to RSA 91-A:3, II(d) – Real Estate

Made by: Mr. Pope **Second:** Mr. Damren

Nancy Merrill, the City Manager and the clerk were invited to attend the non-public session.

Roll Call Vote:

Carolyn Towle – Aye

Scott Pope – Aye

Keith Raymond – Aye

Victor Bergeron – Aye

Allen Damren – Aye

Bruce Temple – Aye

Nicholas Koloski – Aye

John Simonds – Aye

Mayor Charlene Lovett - Aye

PUBLIC SESSION RESUMES

Mr. Koloski rejoined the meeting.

Motion: To seal the minutes of the non-public meeting until it is no longer necessary.

Made by: Mr. Pope **Second:** Mr. Bergeron

Roll Call Vote:

Carolyn Towle – Aye

Scott Pope – Aye

Keith Raymond – Aye

Victor Bergeron – Aye

Allen Damren – Aye

Bruce Temple – Aye

Nicholas Koloski – Abstained

John Simonds – Aye

Mayor Charlene Lovett - Aye

Motion to Authorize Sale of City-Owned Property

The Claremont City Council hereby authorizes the City Manager or his designees to negotiate, execute and undertake all such actions as may be required to convey

City-owned land with building located at Tax Map 120, Lot 156 (106 Broad Street), to Lake Sunapee Baptist Church for \$700.00, subject to any easements and covenants of record, and to accept all proceeds related thereto for deposit into the applicable City account. Personal property, including the church bell and weathervane, are not included in this sale.

Made by: Mr. Damren

Second: Mrs. Towle

Mayor Lovett asked that the Council be given the opportunity to review the sales document(s) before they are finalized with the buyer.

Vote: Unanimous in favor

The Council took a break at 8:05 PM. Mayor Lovett reconvened the meeting at 8:15 PM.

C. Change to Council Rules (Emergency Meeting, Special Meeting, City Solicitor)

Mayor Lovett reintroduced her proposed change to Rule #2, Special Meetings. It was thought following the initial conversation at the last meeting that perhaps the Rules should address emergency meetings, which the Rules did not address. Also at that time, Mr. Koloski had asked about the Rule regarding the City Solicitor.

Mayor Lovett said, "What you have in front of you – what you were sent – is everything about special meetings, the proposed change and the clean copy because that already exists in the Council Rules and then the new Rule – which I suggest become Rule #3 in our Council Rules and then we renumber everything following to one up - to reorder the numbers. However, I did hear back - again I did say at last Council meeting that what is written, the changes as far as the special meetings has been reviewed by NHMA legal department so it is legally accurate; and then I got a few minor changes to what I sent out to you with regard to emergency meetings from Mr. Buckley, who is one of the attorneys at NHMA, so ... the City Manager made a copy of that change and your copy may not be in red but it should be underlined. So, when we get to that part, if somebody makes the motion to include that into our Council Rules, that is the one that you should be making the motion for. ... So, the emergency meeting one, the one that just got handed out today has a few minor changes from what you received. And if you make a motion to accept that Rule, that is, and I'll read it you – it says, *'Emergency meetings may be called by the Mayor or if absent the Assistant Mayor, without a 24-hour advanced notice, in accordance with RSA 91-A:2II. An emergency shall mean, a situation where immediate undelayed action is deemed to be imperative in the opinion of the Mayor or in the opinion of the Assistant Mayor if the Mayor is absent. The Mayor or the Assistant Mayor if the mayor is absent shall post a notice of the time and place of such meeting as soon as practicable, and shall employ whatever further means are reasonably available to inform the public that a meeting is to be held under RSA 91-A:2,IIIb. An emergency meeting can be called without the presence of a physical quorum at*

the place of the meeting permitting members to participate in the meeting by electronic or other means of communication. The minutes of the meeting shall clearly spell out the need for the emergency meeting.’ That’s what you would be accepting if you approve the emergency meeting Rule.”

The Mayor said the change to Rule #11 would be the insertion of the words, “*if on staff*” at the end of the sentence.

The Mayor called for a motion to accept the changes to Rule #2, add Rule #3 for emergency meetings, and make the one change to Rule #11.

Motion: To accept the changes as proposed to Council Rule #2 regarding special meetings as presented to us; and to accept the wording for the new Rule regarding emergency meetings, again, as presented to us; and also, to accept the change to the City Solicitor section of the Rules as well.

Made by: Mr. Damren **Second:** Mr. Bergeron

Mr. Pope asked if this proceeding was following the provisions of Rule 48 for amending the Council Rules. He asked if these changes were being presented this evening for a first reading or if the expectation was to approve them at this meeting. There was discussion about whether the rule changes could be voted on at this meeting or if they needed to wait until the next meeting. To help clarify, Mr. Pope read Rule 48 out loud: “*These rules may be amended and new rules adopted by 2/3 vote of all members of the Council. Any such alterations or amendments shall be submitted in writing at the preceding regular meeting and shall be placed on the calendar under the order of New Business. This requirement shall be waived only by unanimous consent of the recorded vote of all members.*”

Motion: Under rule 48, I’d like to move for the Council to provide unanimous consent to move on this.

Made by: Mr. Pope **Second:** Mr. Bergeron

Roll Call Vote: (must be unanimous to suspend the Rules)

Carolyn Towle – Aye

Scott Pope – Aye

Keith Raymond – Aye

Victor Bergeron – Aye

Allen Damren – Aye

Bruce Temple – Aye

Nicholas Koloski – Aye

John Simonds – Aye

Mayor Charlene Lovett - Aye

Roll Call Vote: (on the motion to accept the rule changes – requires 2/3 vote)

Carolyn Towle – Aye

Scott Pope – Aye

Keith Raymond – Aye

Victor Bergeron – Aye

Allen Damren – Aye

Bruce Temple – Aye

Nicholas Koloski – Aye

John Simonds – Aye

Mayor Charlene Lovett - Aye

10. NEW BUSINESS

A. Naming of City-Owned Properties Policy (see 7/3 Lovett email)

Mr. Bergeron said that the Policy Committee had planned to present this policy at this meeting. However, the committee was unable to meet in July. He asked for the Council's input on the policy to bring to the Policy Committee's next meeting on August 17th. It will then be presented to the Council at the August 23rd meeting. Mr. Bergeron said the policy has been reviewed by the Director of Public Works because it involves street signs. Mr. Bergeron said that Mr. Sweet "sees nothing wrong with it". A copy of the policy has also been given to the City Manager for a legal opinion.

Mr. Damren said he had several edits he would send to the committee in an email. Mr. Bergeron encouraged Council members to send him any comments or questions they have and he will bring them to the committee (next meeting on August 17th). First reading of the policy should be on August 23rd.

Mr. Folta asked why this item was not in the Council packet. He said the only opportunity for citizen input will be during second reading. The Council disagreed – citizens can comment on the policy at the next meeting during its first reading. Mr. Folta asked where citizens could get a copy of the policy to review. He was informed that it will be in the packet for the next Council meeting. Mr. Folta insisted that the public will not have an opportunity to comment until the second reading. Mayor Lovett said the policy committee will be discussing the policy at their next meeting on the 17th. Since that is a public meeting, citizens can be involved in the discussion there.

Mayor Lovett thanked the committee for their work on this.

B. Discussion on creating a policy pertaining to Alternative and Renewable Energy

Mayor Lovett said the discussion on this was intended to be brief. She said she wanted consensus from Council about whether (or not) the Council wants to start “a real discussion about renewable energy and what kind of policy” does the Council want developed.

Mayor Lovett said, “For instance, it is going to be a chapter in the Master Plan. However, according to RSA 38D, the governing body of a municipality has to determine whether they want to create an energy commission and there has to be discussion about whether it should be a commission or a committee. Then there have to be discussions about incentives for incentivizing people to go after renewable energy. Do we want to have this discussion and do we want to develop a policy that will, in a broad sense, map the position of the City as far as do we want to make renewable energy a priority? Do we want to take the steps necessary to cut down the cost of electricity for residents and businesses in the community? Do we want energy that has less of a carbon footprint? What is our policy?”

Mr. McNutt felt these were good topics on which to have a discussion. Mr. Bergeron felt it was very important for the future. Mr. Simonds said his personal opinion was that it was a lot more work and suggested it be put as a goal for the next Council. He said Public Works is already purchasing “green” streetlights. He said sounded like too much work to “just decide if we want to go green or not.”

Mr. McNutt said in Massachusetts, most communities have a citizen energy committee whose members are typically not City Councilors or Selectmen. It is helpful when the community can get subject experts – people with experience with solar, wind, utilities, power grids etc. - to be on the committee. He said the energy committee can be a very helpful tool, especially in grant-writing. The City can get points on the grant application if it has an established energy committee. He said it didn’t sound like it needed to be another City Council committee.

Mr. Simonds said that was his only point – he said it sounded like a lot of discussions coming down the road from this where we decide if this is what we wanted to do – his only position was, it almost seems as if it is in the Master Plan, then the whole goal was to work towards that; but if there are benefits from doing that, then he would seriously consider it.

Mayor Lovett clarified – this legislation went into effect in September of 2009 – the governing body – if they decide to go the route of energy commission vs energy committee – they have to adopt that (RSA 38D). What is recommended is the Council – the governing body – have a really in depth conversation about the pros and cons of creating a committee vs a commission. She said she believed this Council has enough time. She agreed with Mr. McNutt that the committee/commission has a great deal of value, but the Council needs to decide

what direction it wants to go in; and there needs to be an in-depth discussion about that.

Mr. Koloski said he preferred a commission to a committee on the grounds that he believes a commission would have greater access to funding and grants. He said the community has already missed several opportunities in the past three years that he is aware of (e.g. the Solarize program by Vital Communities). He said there is “some miscommunication” (from solar contractors) that we are not solar friendly in this community.” It has been difficult to find information to assist businesses in the city. He felt it would be beneficial to have a commission.

The Mayor had distributed a handout to the council members about incentives for renewable energy. She said these, too, have to be adopted by the Council. She said there are many things for the Council to be working on and suggested discussions of committee vs commission and renewable energy property tax exemptions be added as agenda items to a Council meeting “in the very near future”.

Mr. Pope asked if the people who are working on the energy section of the Master Plan be at the meeting when the Council starts discussing this. Mayor Lovett agreed to invite them.

Mr. McNutt said that Nancy Merrill and Mike McCrory “would love to come and talk about this to the Council”. Mayor Lovett agreed.

Mayor Lovett said, however, “Given that the legislation passed in 2009, it would be nice to get this done.” Mr. Pope agreed and said he was not attempting to delay anything.

Mrs. Towle agreed that this discussion should an agenda item.

There was no further discussion.

C. Discussion on creating a policy pertaining to lead poisoning

Mayor Lovett said it has been almost a full year since the Council began researching lead issues in the City. The Council and the School Board have agreed to make this a community-wide effort. The Mayor had given Council members a copy of Manchester’s policy with regard to lead. Previously the City did not want to develop a policy until the City had some resources in place for people to access to enable them to comply with the policy. The Mayor felt the Council is now at that point to do so, because funding sources have been identified; Mr. McNutt has started to look at providing free RRP (Repair, Renovate, Paint) training; educational outreach has occurred with more to come. She said that if the Council agrees with that, this item can also be made an agenda item.

Mayor Lovett said she had also asked DHHS, public health division, to do some research across the state to see if other communities have enacted an ordinance with regard to this. She also asked for best practices and recommendations, to be considered in creating Claremont's policy.

Mr. McNutt said he thought this was a worthwhile effort and that he would like to be a part of the discussion as it gets going. He said he would look to create policies that are goal-oriented but general enough not to lock the City or private citizens into things that are inflexible; perhaps discussing a policy of identifying funding sources that are available in any given year to try to reduce the amount of housing stock that is afflicted by lead-based paint by 5% a year. (It is unlikely that specific numbers of units will ever be known.) Another policy example – mitigation of lead-based paint in the soil as a result of exterior paint-scraping. Again, funding sources need to be identified to assist in the mitigation.

Mr. Raymond felt this was important because contractors have to abide by EPA rules and regulations but homeowners do not.

The consensus of the Council was to move this topic to the policy committee to get it started.

Mr. Bergeron asked if the Mayor was going to appoint someone to take his place on the policy committee in September. The Mayor asked if anyone on the Council wanted to volunteer. No one responded. At present the committee consists of three councilors and two members from the public. Mr. Bergeron said the committee could get by with just two councilors. Mayor Lovett asked if either Mr. Pope or Mr. Simonds wanted to assume the chair of the committee. Mr. Pope said the committee would address that at their next meeting.

11. COMMITTEE REPORTS

Finance Committee

The Finance Committee has met for the 3rd time (August 8th). The City Manager attended the meeting on the 8th. Mr. Damren gave a summary of the committee's activities.

The committee has spent its time so far addressing such items as the need for a dashboard report. For example, the state of the City's finances can best be expressed through a number of commonly known and widely-accepted ratios. The issue would then be compared to various benchmarks – financial, operational, etc. - that are still being worked out. It would be a means of providing the Council with a periodic idea of where the City is heading, where it has been, and so on.

Also discussed was taking time with the budgets – for example requesting an explanation of what budget money is to be used for (example from Lebanon provided by Mr. Temple).

Also discussed was the need for a quarterly or semi-annual report from the City Manager detailing how the City is doing, what the ratios look like, and what efforts have been for the 3- or 6-month period on related ratios on financial indicators.

The committee discussed fund balances. There is already a policy related to fund balance. It contains a lot of “boiler-plate” language. Much of the language can be found in the annual audit reports explaining the various categories of fund balances. The finance committee felt the need to go further – to try to put into words if the nature of transactions either in or out of fund balance would be acceptable; what the upper parameters of the fund balance would be; would there be withdrawals from fund balance for purely one-time expenditures? Or would they be more of an on-going nature? To try to define that so that future Councils would have some sort of a benchmark in terms of our understanding of what we want the City’s fund balance to be.

The next meeting is scheduled for August 22nd. Mr. Damren will be researching other community policies and anything NHMA may have with regard to fund balance.

Mayor Lovett said the committee decided at their last meeting that they will assemble the draft fund balance policy and then send it on to the policy committee by some time in October.

12. FUTURE AGENDA ITEMS AND DIRECTIVES

Mr. Pope asked that the Council look at the process for appointing a new assistant mayor as soon as possible. He said the Charter does not specify any process for this. He asked that this be an agenda item.

Mr. Damren asked for the water sewer fund balance be brought back before the Council at the next meeting. Mayor Lovett said that may be difficult given the number of items already slated for the August 23rd meeting (she listed them). Mr. Damren said the first meeting in September would be acceptable.

Mr. McNutt said:

- DPW would like to have a discussion about potentially closing Half Mile Road. (first meeting in Sept)
- There is an issue on Hogback Road where making it one-way for safety reasons needs to be discussed. (first meeting in Sept)
- A potential discussion about making a street off of Maple Avenue part of a school zone. (August 23rd meeting)

Mr. Temple said his items do not need to be agenda items, perhaps just a brief discussion. He said at the last meeting, a couple of women from Dartmouth College came to present about a needle exchange program (already in existence). He said he was concerned that something of this nature occurred without the Council knowing it. The Soup Kitchen (where the exchange

takes place) is in fairly close proximity to a couple of schools. He asked if having the needle exchange at that location is (a) appropriate or (b) zoned appropriately for the use.

Mayor Lovett said the women came to the Council twice. (Other Councilors remembered them appearing only once and others claimed not to have seen them at all.) She said the first time she heard about it was through Rotary. They chose the Soup Kitchen because Dartmouth students are already doing other medical-type things there. Mayor Lovett said she referred them to the City Manager, the Police Chief and the Fire Chief. She said she and the Manager set up that meeting which was held in the City Manager's office. She attended that meeting. Following the meeting, they were waiting for some legislation to go through (regarding clean needle exchange). They started (the exchange) the 19th of June. Mayor Lovett then suggested to them that they do an update to the Council.

Mr. Temple repeated his concern that the Soup Kitchen is located close to a couple of elementary schools. He felt "out of the loop".

The City Manager will look into the questions raised.

Mrs. Towle asked about the regularity of the program. No one knew how often the program occurs. The Mayor said she would find out.

Mr. Temple said, "I know we talked about the land down in the cornfield – farmer MacGlaflin's land – and how other farmers are paying taxes or payment in lieu of taxes, and I think a local attorney stood up, Mr. Feleen, and said he hasn't paid any taxes down there – I just wondered are we just going to let that go? Is there going to be further discussion? It doesn't need to be at the next meeting."

Mr. McNutt said he has reached out to Mr. MacGlaflin, who has not gotten back to Mr. McNutt yet. He said he will find out about the tax issue. He said he understood the issue behind the land swap, but he did not want to discuss it publicly. He will definitely find out if "the gentleman is paying taxes or not." The land swap will be a bit harder to work through. Mayor Lovett asked that the information gathered about the tax issue be placed in the City Manager report.

Mr. Pope said he would like to hear about warming shelters. It could be either in the Manager's report or an agenda item. He said this is part of the emergency management system in the City and the ems is the party responsible for determining when the shelters need to be opened. He said he would like to know how the City goes about doing it, where we open them, how we notify the public, etc. Mr. McNutt suggested having the emergency management director, Rick Bergeron, come and explain what he would do in an emergency. It was agreed to add this as an agenda item to the September agenda.

Mr. Temple said he understood that the City is extracting sand from the airport facility. He said he remembers 15-18 years ago this same issue arising and there was "a whole wall of reasons why we couldn't do that. It predominantly hinged around FAA and that fact that it is a state-aided airport". He asked if the Council could be briefed as to where the sand is coming from.

He said he also noticed in the budget the amount of winter maintenance materials was reduced from what the Public Works Director asked for by \$20,000. Mr. Temple wondered if the net difference is the result of the City not buying any more winter sand. He asked how much more sand could the City expect to extract – would it be ongoing or was this a one-time deal.

Mr. Raymond said he thought it might be just a one-time thing. He said they have been cutting a lot of trees and leveling areas around the fence areas. He didn't think there would be multiple years'-worth of sand available and that it was probably associated with the construction of a new hangar.

Mr. McNutt said Rick Bergeron could update the Council on this at the same time he updates on the warming shelters.

Mayor Lovett said she would also like to ask the Fire Chief why he said the airport is very busy when the finance director's report states that revenue is down 40%. (The revenue from the airport is from gas.)

Mr. Raymond said he has had a number of phone calls regarding West Pleasant where it branches and goes up to South Street and possibly turning that into a one-way street heading towards South. He said it's not a very wide street and cars park on at least one side of the street. When cars park on both sides, only one car can barely get between them. Mr. McNutt said he would call Mr. Raymond to view the site as he was not familiar with it.

Mrs. Towle said she has missed the last two or three ribbon-cuttings – she asked if she could get a reminder right before the event to help her remember. Mr. McNutt said he would attempt to help with that.

Mayor Lovett said that Mr. Koloski had asked for a letter welcoming new businesses to town. She said she had created an example and had asked Mr. McNutt to make copies. The letter would be printed on quality stationery. The idea of framing the letter was also suggested. Mayor Lovett asked the Council how they wanted the letters to be presented to the new businesses. Optimally it should happen at the ribbon-cutting. It was agreed that the letter will be presented to all new businesses opened in 2017 by either the mayor or the assistant mayor or a counselor. Each letter will be signed by all of the council members.

Mr. Koloski said the roadside vegetation growing over the guardrails along Main Street from the bridge to Ascutney is the worst he has seen it in his lifetime.

Mr. Koloski asked if in the North/Main project there will be another matching "Welcome to Claremont" sign. Mr. Temple said the sign and posts are at DPW (or the wastewater facility). He said the problem with the Main Street sign was getting it in around the urban compact line. He said he could just never find a place to put it, but that maybe it was time to find a place.

Mr. Koloski said he wanted to look into zoning “those yellow bins, those clothing bins so they don’t end up in the river again. Attached to that, I wanted to know if the City recovered the cost of emergency services personnel for that river recovery”, akin to recovering costs in a hazmat clean-up. Mr. McNutt said he thought these aid boxes are a problem for a variety of reasons. He said he would like them all zoned into one particular area of town so they can be policed better.

Mr. Koloski asked what the City’s policy is for handling dirty needles found on the roadside. He said he found one in the mill district about a year ago. He phoned the police. An officer responded, put gloves on, placed it into a sharps container, brought it to the hospital and disposed of it. He said a citizen recently complained that they went through those same steps and the police department (allegedly) advised that they don’t do that. He said now he wouldn’t know what to tell someone. Mr. McNutt said he would look into it.

Mr. Pope announced the Back to School Festival scheduled for August 26th.

13. CONSULTATION WITH LEGAL COUNSEL

None

14. NON-PUBLIC SESSION PURSUANT TO RSA 91-A:3,II(a) - PERSONNEL

Motion: To enter non-public session pursuant to RSA 91-A:3, II(a) – personnel.

Made by: Mr. Damren Second: Mrs. Towle

Roll Call Vote:

Carolyn Towle – Aye

Scott Pope – Aye

Keith Raymond – Aye

Victor Bergeron – Aye

Allen Damren – Aye

Bruce Temple – Aye

Nicholas Koloski – Aye

John Simonds – Aye

Mayor Charlene Lovett - Aye

The City Manager was invited to attend the session after a 5-minute delay.

ADJOURNMENT

At ____ p.m., a motion was made by ____ and seconded by ____ to adjourn.

Voice vote: motion carried ____

Respectfully Submitted,

deForest Bearse

Resource Coordinator